

SOLVED PRACTICE WORKBOOK

Special Provisions - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Special Provisions	
PART XII: CONSTITUTIONAL ASYMMETRY BY DESIGN Part XII is titled 'Provincial, Territorial and Local Provisions'.	WHY ASYMMETRIC FEDERALISM EXISTS Indirectly, this asymmetric federalism exists as a result of history.
ARTICLE 370 BEFORE 2019 The decision context is between Article 370 and Part XII.	ARTICLE 354 Article 354 describes the constitutional role and institutional role.
ARTICLE 370(a) AND THE CONSTITUENT ASSEMBLY PROBLEM The decision context is between President and Article 370(a).	THE 2019 CONSTITUTIONAL INSTRUMENTS The decision context is between Parliament and Article 370(a).
REMOVED SUPPLEMENTARY NOT DELETED The decision context is between Article 370(a) and Article 370(b).	IN RE ARTICLE 370 (11) DECEMBER 2020: CORE HOLDINGS Indirectly, this decision is a result of the 2019 constitutional instruments.
ELECTIONS AND STATEHOOD AFTER THE JUDGMENT The decision context is between Article 370(a) and Article 370(b).	J&K UNION TERRITORY LEGISLATURE In principle, the decision context is between Article 370(a) and Article 370(b).
LADAKH'S CURRENT POSITION The decision context is between Article 370(a) and Article 370(b).	ARTICLE 371 FAMILY: MASTER MAP Indirectly, Article 371 family master map is a result of history.
ARTICLE 371: MAHARASHTRA AND GUJARAT The decision context is between Article 371(a) and Article 371(b).	ARTICLE 371A: NAGALAND The decision context is between Article 371(a) and Article 371(b).
ARTICLE 371B: ASSAM The decision context is between Article 371(b) and Article 371(c).	ARTICLE 371C: MANIPUR In principle, the decision context is between Article 371(c) and Article 371(d).
ARTICLES 371D AND 371E: ANDHRA PRADESH AND TELANGANA The decision context is between Article 371(d) and Article 371(e).	ARTICLE 371F: SIKKIM The decision context is between Article 371(f) and Article 371(g).
ARTICLE 371G: MIZORAM The decision context is between Article 371(g) and Article 371(h).	ARTICLES 371H AND 371I The decision context is between Article 371(h) and Article 371(i).
ARTICLE 371J: KARNATAKA The decision context is between Article 371(j) and Article 371(k).	STRONGEST ARTICLE 371 PROTECTIONS The decision context is between Article 371(k) and Article 371(l).
ARTICLE 371 VERSUS FIFTH SCHEDULE A state created by Article 371 may also be created with other states.	ARTICLE 371 VERSUS SIXTH SCHEDULE The decision context is between Article 371(l) and Article 371(m).
FIFTH AND SIXTH SCHEDULE RAPID COMPARISON The decision context is between Article 371(m) and Article 371(n).	NORTH EASTERN COUNCIL The decision context is between Article 371(n) and Article 371(o).
ASYMMETRY AND EQUALITY The decision context is between Article 371(o) and Article 371(p).	ASYMMETRY AND NATIONAL INTEGRATION The decision context is between Article 371(p) and Article 371(q).
CONSENT AND CONSULTATION Article 371(q) requires the consent of the state concerned.	LAND, RESOURCES AND INDIGENOUS PROTECTION In principle, the decision context is between Article 371(q) and Article 371(r).
CURRENT LADAKH DEBATE The decision context is between Article 371(r) and Article 371(s).	CURRENT J&K FEDERAL QUESTION The decision context is between Article 371(s) and Article 371(t).
REFORM PRINCIPLES FOR SPECIAL PROVISIONS The decision context is between Article 371(t) and Article 371(u).	PART XII AND BASIC STRUCTURE Part XII and Basic Structure describes the constitutional role and institutional role.
FAQ MEMORY MAP The decision context is between Article 371(u) and Article 371(v).	

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Special Provisions - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQ loop - balanced deterministic non-patterned placement

OM1. Part location

Articles 370 and 371 provisions are located in:

A. Part XXI. B. Ninth Schedule. C. Part X only. D. Part III.

Answer: A.

Explanation: [FACT] Part XXI contains temporary, transitional and special provisions.

OM2. Article 370 status

The most accurate description is:

A. deleted entirely from the printed Constitution. B. converted into Article 371. C. fully operational after 2023. D. rendered inoperative through the 2019 process.

Answer: D.

Explanation: [FACT] Inoperability is not textual deletion.

OM3. Article 35A source

Article 35A entered through:

A. an ordinary J&K statute. B. the First Amendment. C. the 1954 Presidential Order. D. a Supreme Court judgment.

Answer: C.

Explanation: [FACT] It was not a Parliament-passed constitutional amendment.

OM4. Reorganisation

The 2019 Act created:

A. two full States. B. one UT without legislature. C. J&K UT with legislature and Ladakh UT without legislature. D. J&K State and Ladakh State.

Answer: C.

Explanation: [FACT] Effective from 31 October 2019.

OM5. 2023 judgment

The Court held Article 370 was:

A. temporary. B. a treaty. C. outside judicial review. D. a permanent Basic Structure provision.

Answer: A.

Explanation: [FACT] The Court upheld the abrogation.

OM6. Internal sovereignty

The Court held J&K:

A. retained treaty sovereignty. B. retained no internal sovereignty distinct from other States. C. remained a dominion. D. could veto every Union law.

Answer: B.

Explanation: [FACT] Accession and constitutional integration were controlling.

OM7. Constituent Assembly

The Court held presidential Article 370(3) power:

A. required a referendum. B. expired in 1957. C. survived dissolution of the J&K Constituent Assembly. D. belonged to the Governor.

Answer: C.

Explanation: [FACT] Recommendation was not a continuing precondition.

OM8. Statehood question

Which is accurate?

A. Court finally upheld every State-to-UT conversion. B. Statehood remains pending and no fixed judicial deadline was imposed. C. Statehood was restored in 2024. D. Court set 2025 as deadline.

Answer: B.

Explanation: [CURRENT/LIMIT] The Union assurance was recorded.

OM9. J&K Assembly

The present J&K Assembly belongs to:

A. a full State. B. an autonomous district. C. a Sixth Schedule region. D. a Union Territory with legislature.

Answer: D.

Explanation: [FACT] Statehood is pending.

OM10. Ladakh

Ladakh currently is:

A. a Union Territory without legislature. B. a State. C. a Sixth Schedule autonomous State. D. governed under Article 371A.

Answer: A.

Explanation: [CURRENT] Demands have not changed constitutional status.

OM11. Article 371 States

The Article 371 family covers special provisions for:

A. all States. B. every Union Territory. C. only North-Eastern States. D. 12 States.

Answer: D.

Explanation: [FACT] The family extends from Maharashtra/Gujarat to Karnataka and multiple NE States.

OM12. Article 371

Development boards for Vidarbha/Marathwada and Saurashtra/Kutch arise under:

A. Article 371. B. 371J only. C. 371A. D. 371D.

Answer: A.

Explanation: [FACT] It concerns Maharashtra and Gujarat.

OM13. Nagaland

Article 371A applies to:

A. Nagaland. B. Mizoram. C. Manipur. D. Assam.

Answer: A.

Explanation: [FACT] It protects Naga custom, land and specified justice fields.

OM14. Assam committee

The Tribal Areas committee provision is:

A. 371H. B. 371I. C. 371C. D. 371B.

Answer: D.

Explanation: [FACT] Article 371B concerns Assam.

OM15. Manipur

Hill Areas Committee is associated with:

A. 371J. B. 371C. C. 371G. D. 371F.

Answer: B.

Explanation: [FACT] It includes Governor special responsibility/reporting.

OM16. AP and Telangana

Equitable local opportunity in public employment and education is primarily:

A. 371A. B. 371I. C. 371F. D. 371D.

Answer: D.

Explanation: [FACT] The framework applies to Andhra Pradesh and Telangana.

OM17. Sikkim

Article 371F concerns:

A. Sikkim. B. Karnataka. C. Goa. D. Arunachal Pradesh.

Answer: A.

Explanation: [FACT] It accompanied Sikkim's integration.

OM18. Mizoram

Customary-law and land consent protection is found in:

A. 371B. B. 371I. C. 371H. D. 371G.

Answer: D.

Explanation: [FACT] Article 371G resembles 371A in protected subjects.

OM19. Arunachal Pradesh

Governor law-and-order responsibility is under:

A. 371J. B. 371F. C. 371H. D. 371D.

Answer: C.

Explanation: [FACT] The Assembly minimum is also 30.

OM20. Goa

Article 371I provides principally:

A. a Hill Areas Committee. B. minimum Assembly strength of 30. C. land-law consent. D. local cadres.

Answer: B.

Explanation: [FACT] It is a narrow institutional provision.

OM21. Karnataka

Article 371J concerns:

A. Naga customary law. B. Saurashtra only. C. Kalyana Karnataka regional development and local opportunity. D. Goa's Assembly.

Answer: C.

Explanation: [FACT] Inserted by the 98th Amendment.

OM22. Strongest consent shields

Which pair requires Assembly decision for specified custom/land parliamentary laws?

A. 371A and 371G. B. 371B and 371C. C. 371 and 371J. D. 371H and 371I.

Answer: A.

Explanation: [FACT] Nagaland and Mizoram.

OM23. Fifth Schedule

Scheduled Areas are declared by:

A. State Assembly. B. Governor. C. President. D. Tribes Advisory Council.

Answer: C.

Explanation: [FACT] Consultation with Governor occurs where relevant.

OM24. Sixth Schedule States

The correct group is:

A. Assam, Meghalaya, Tripura, Mizoram. B. Nagaland, Manipur, Arunachal, Sikkim. C. all NE States. D. Assam, Nagaland, Mizoram, Manipur.

Answer: A.

Explanation: [FACT] Use AMTM.

OM25. Fifth Schedule institution

The advisory institution is:

A. Inter-State Council. B. Tribes Advisory Council. C. Autonomous District Council. D. North Eastern Council.

Answer: B.

Explanation: [FACT] TAC does not legislate.

OM26. Sixth Schedule

Autonomous District Councils may exercise:

A. only advisory functions. B. no taxing power. C. specified legislative, judicial and fiscal powers. D. presidential election powers.

Answer: C.

Explanation: [FACT] Powers are limited to Schedule subjects.

OM27. Article 371 versus Sixth Schedule

Which is correct?

A. They are the same mechanism. B. Article 371 applies only to autonomous councils. C. Sixth Schedule is part of Article 371A. D. They are distinct constitutional mechanisms.

Answer: D.

Explanation: [FACT] Part XXI differs from Article 244 schedules.

OM28. Ladakh demand

As of 18 August 2026:

A. Statehood/Sixth Schedule demands remain unenacted. B. Ladakh is a State. C. Sixth Schedule automatically applies. D. Article 371K protects it.

Answer: A.

Explanation: [CURRENT] No constitutional change has been enacted.

OM29. NEC

The North Eastern Council is:

A. an Article 371 body. B. a constitutional court. C. a statutory body. D. a Sixth Schedule district council.

Answer: C.

Explanation: [FACT] It arises under the NEC Act, 1971.

OM30. NEC membership

The NEC framework includes:

A. Governors, Chief Ministers and presidential nominees. B. only Governors. C. Autonomous Council chiefs only. D. only MPs.

Answer: A.

Explanation: [FACT] Ex-officio Union leadership was added under the amended framework.

OM31. Differentiated rights

The strongest constitutional defence is:

A. every difference is permanent. B. special provisions create separate sovereignty. C. tailored protection can advance substantive equality and integration. D. uniformity is unconstitutional.

Answer: C.

Explanation: [ANALYSIS] Purpose and proportionality justify differentiation.

OM32. Basic Structure

Which is accurate?

A. Part XXI is outside review. B. Federalism is Basic Structure, but individual special provisions are not automatically unamendable. C. Federalism is not Basic Structure. D. Every Article 371 clause is unamendable.

Answer: B.

Explanation: [FACT/ANALYSIS] Review concerns the federal principle and amendment effect.

OM33. Article 371A scope

Its Assembly shield applies:

A. only during emergency. B. only to taxation. C. to every Union law. D. only to four specified subject groups.

Answer: D.

Explanation: [FACT] It is strong but subject-specific.

OM34. Article 371E

It empowers Parliament concerning:

A. Goa Assembly strength. B. a Central University in Andhra Pradesh. C. J&K Statehood. D. district councils.

Answer: B.

Explanation: [FACT] Do not confuse with 371D local-opportunity rules.

OM35. Article 370 judgment caution

Which statement is most accurate?

A. Court deleted Article 370 text. B. Court upheld abrogation but did not finally adjudicate the UT-conversion validity. C. Court fixed a Statehood date. D. Court restored Article 35A.

Answer: B.

Explanation: [FACT/LIMIT] The Union assurance made a final ruling on J&K conversion unnecessary.

OM36. Asymmetric federalism

The best description is:

A. temporary emergency alone. B. multiple sovereignties outside India. C. identical rules for all regions. D. constitutionally tailored autonomy/protection within one Union.

Answer: D.

Explanation: [ANALYSIS] Difference operates inside constitutional unity.

Remedial MCQs - strict B -> A -> B -> D rotation

R1. Status trap

Article 370 was:

A. restored in 2024. B. rendered inoperative, not textually deleted. C. moved to Part III. D. replaced by Sixth Schedule.

Answer: B.

Remedy: Separate printed text from legal operability.

R2. Judgment trap

The 2023 Court described Article 370 as:

A. treaty immune from change. B. ordinary statute. C. temporary. D. permanent sovereignty guarantee.

Answer: C.

Remedy: Use the exact holding.

R3. Statehood trap

J&K Statehood:

A. remains pending. B. was restored with elections. C. has a judicial deadline. D. is barred forever.

Answer: A.

Remedy: Elections and Statehood are separate.

R4. Ladakh trap

Ladakh:

A. has an Assembly. B. remains a UT without legislature. C. is already Sixth Schedule. D. is under Article 371A.

Answer: B.

Remedy: Demands are not enacted status.

R5. Nagaland trap

The land/custom shield belongs to:

A. 371B. B. Article 371A. C. 371I. D. 371C.

Answer: B.

Remedy: A = Nagaland; G = Mizoram.

R6. Committee trap

Assam's Tribal Areas Committee is:

A. 371H. B. 371C. C. Fifth Schedule TAC. D. 371B.

Answer: D.

Remedy: Article 371B is an Assembly committee, not the Fifth Schedule TAC.

R7. Local-opportunity trap

AP/Telangana provision:

A. 371F. B. 371I. C. 371J. D. 371D.

Answer: D.

Remedy: D = local cadres/opportunity.

R8. Schedule trap

Sixth Schedule applies in:

A. Assam, Meghalaya, Tripura and Mizoram. B. Ladakh automatically. C. all tribal States. D. ten Fifth Schedule States.

Answer: A.

Remedy: AMTM.

R9. Fifth Schedule declaration

Scheduled Areas are declared by:

A. TAC. B. Parliament alone. C. Governor. D. President.

Answer: D.

Remedy: Governor has reporting/regulation roles, not declaration.

R10. NEC trap

NEC is:

A. constitutional. B. a State legislature. C. statutory. D. judicial.

Answer: C.

Remedy: NEC Act, 1971.

R11. Equality trap

Special provisions may be defended because:

A. federalism requires secession. B. tailored safeguards can serve substantive equality. C. every resident has separate citizenship. D. Article 14 never applies.

Answer: B.

Remedy: Different treatment needs a legitimate protective/developmental purpose.

R12. Source trap

Article 35A came from:

A. Reorganisation Act. B. 36th Amendment. C. 1954 Presidential Order. D. Article 371J.

Answer: C.

Remedy: It was not enacted through Article 368.

PYQS AND ANSWER PRACTICE

Verified/cross-owned Mains PYQ

PYQ 1 - UPSC GS-II 2025, Q4 - direct application

Verified neutral demand: Discuss the nature of the Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganisation Act, 2019, and briefly describe its powers and functions. **10 marks | 150 words | Primary owner: Union Territories; direct application here**

Model answer

Claim: [FACT] The post-2019 Jammu and Kashmir Assembly is an elected legislature of a Union Territory, not the legislature of a full State.

Named evidence: The Jammu and Kashmir Reorganisation Act, 2019 created J&K as a UT with a legislature and Ladakh as a UT without one. The J&K Assembly makes laws within the Act's permitted State-List and Concurrent-List fields, while public order and police remain outside its ordinary competence. It votes the budget, authorises expenditure, debates public policy and holds the Chief Minister-led Council of Ministers politically accountable.

Analysis: The Assembly restores representative government and regional voice after the 2019 reorganisation, but Parliament's overriding competence and the Lieutenant Governor/Union architecture make it weaker than a State legislature.

Current qualification: [CURRENT] Elections were held in 2024, but Statehood remains pending. [LIMIT] The 2023 Article 370 judgment recorded restoration at the earliest without fixing a deadline.

Verdict: J&K now has democratic self-government within a Union Territory framework; full federal parity awaits Statehood restoration.

Evidence chain: Reorganisation Act -> UT with legislature -> fields/exclusions -> financial/accountability functions -> 2024 election -> pending Statehood.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2024 GS-I Q70

Verified neutral demand: Composition of the North Eastern Council.

Doctrinal solution

- [FACT] NEC is statutory under the North Eastern Council Act, 1971.
- [FACT] It includes Governors and Chief Ministers of the region's States and three presidential nominees.
- [FACT] The Union Home Minister and DoNER Minister hold the current ex-officio leadership roles under the amended framework.
- [LIMIT] NEC is not an Article 371 constitutional body.

Elimination rule: Reject options treating NEC as a Sixth Schedule council or Article 371 committee.

Prelims route 2 - 2022 GS-I Q73 - cross-owned

Verified neutral demand: Consequences of Fifth Schedule status for tribal areas.

Doctrinal solution

- [FACT] President declares Scheduled Areas.
- [FACT] Governor reports annually and may make land/money-lending protective regulations subject to presidential assent.
- [FACT] Union may issue directions to the State.
- [FACT] Tribes Advisory Council is advisory.

Elimination rule: Do not confuse Fifth Schedule supervised protection with Sixth Schedule autonomous councils.

Prelims route 3 - 2025 GS-I Q56 - cross-owned

Verified neutral demand: Executive power and Union role in a Fifth Schedule Scheduled Area.

Doctrinal solution

- [FACT] State executive power continues in Scheduled Areas.
- [FACT] Union executive power extends to giving directions concerning administration.
- [LIMIT] This is not automatic Union takeover or direct day-to-day administration.

Elimination rule: Reject both "no Union role" and "automatic Union administration."

Prelims route 4 - 2026 GS-I Q57 - provisional cross-owner

Verified neutral demand: Constitutional safeguards, schedules, taxation and local representation for SCs/STs.

Doctrinal solution

- [FACT] Fifth/Sixth Schedules operate under Article 244; Sixth Schedule councils possess specified taxation powers.
- [FACT] Legislative and local-body reservations arise from separate constitutional provisions.
- [LIMIT] The local 2026 key is provisional; no official answer letter is inferred.

Elimination rule: Do not attribute Sixth Schedule fiscal powers to a Fifth Schedule Tribes Advisory Council.

Original solved Mains practice

M1. "Asymmetric federalism strengthens Indian unity through constitutional difference." Discuss. (10 marks, 150 words)

Model answer

Claim: [ANALYSIS] Indian unity is not based on institutional uniformity; Part XXI uses tailored guarantees to integrate historically and culturally distinct regions.

Named evidence: Articles 371A and 371G protect customary law and land through Assembly consent. Articles 371 and 371J address regional imbalance. Articles 371B and 371C create tribal/hill representation, while Article 371F managed Sikkim's integration.

Analysis: These provisions reduce fears of cultural absorption, protect vulnerable resources and make Union membership compatible with local autonomy.

Qualification: [LIMIT] Asymmetry may create insider-outsider barriers or patronage if safeguards lack accountability.

Verdict: It strengthens unity when protection is purposeful, locally participatory and reviewable. Constitutional difference is then an instrument of integration, not separate sovereignty.

M2. Critically examine the 2019 changes to Article 370 in light of the 2023 Supreme Court judgment. (15 marks, 250 words)

Model answer

Claim: [FACT] The 2019 process ended Article 370's operative autonomy; the 2023 Constitution Bench upheld the result by treating the Article as temporary and presidential power as continuing.

Mechanism: C.O. 272 applied the Constitution and altered the interpretive route; parliamentary action during President's Rule supported C.O. 273's Article 370(3) declaration. The Reorganisation Act created J&K and Ladakh Union Territories.

Judgment: *In re Article 370* held that J&K retained no separate internal sovereignty, Article 370 was temporary and the President's power survived dissolution of the Constituent Assembly. It found it unnecessary to make the contested Article 367 route essential to validity.

Critique: Integration and uniform rights are advanced; however, using President's Rule when the affected State had no elected voice raises federal-consent concerns.

Qualification: [LIMIT] The Court did not finally decide the validity of converting J&K into a UT; Statehood remains pending.

Verdict: Abrogation is judicially settled, but federal legitimacy requires timely Statehood restoration and representative consultation.

M3. Compare Articles 371A and 371G. (10 marks, 150 words)

Model answer

Claim: [FACT] Articles 371A and 371G are the strongest Part XXI identity safeguards because specified parliamentary laws do not automatically apply without State Assembly decision.

Common fields: religious/social practices, customary law and procedure, customary administration of civil/criminal justice, and land ownership/transfer are protected in Nagaland and Mizoram respectively.

Differences: Article 371A contains Nagaland-specific Tuensang and law-and-order arrangements; Article 371G is tied to Mizoram's settlement framework and fixes a minimum Assembly strength of 40.

Analysis: Both convert cultural protection into a legal consent mechanism rather than a merely advisory promise.

Qualification: [LIMIT] The shield is subject-specific, not a general veto over Parliament.

Verdict: They demonstrate integration through protected custom and land, with State legislatures acting as constitutional consent institutions.

M4. Does differentiated regional protection conflict with single citizenship and equality? Examine. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Special regional rights create differentiated entitlements but do not create separate Indian citizenships.

Conflict: Land, employment and customary-law protections may restrict equal mobility and produce insider-outsider distinctions. Historical Article 35A and current Articles 371A/G are prominent examples.

Justification: Formal sameness can expose small indigenous communities and backward regions to dispossession or permanent disadvantage. Articles 371, 371J and tribal schedules pursue substantive equality, identity and balanced development.

Constitutional balance: Article 14 permits reasonable classification, federalism permits tailored design and judicial review controls arbitrariness. Local minorities and accountability must also be protected.

Qualification: [LIMIT] A protective purpose does not justify every restriction indefinitely.

Verdict: Differentiation is compatible with single citizenship where it is constitutionally authorised, proportionate and connected to vulnerability; it becomes problematic when it hardens into unreviewable exclusion.

M5. Compare Article 371 protections with the Fifth and Sixth Schedules. (15 marks, 250 words)

Model answer

Claim: [FACT] All three protect diversity, but they operate through different units and institutions.

Article 371 family: State-specific arrangements in Part XXI. They range from development boards and local reservations to Assembly consent over custom and land.

Fifth Schedule: Article 244 creates supervised protection in Scheduled Areas. The President declares areas; the Governor reports, modifies laws and makes land/money-lending regulations subject to presidential assent; the TAC advises.

Sixth Schedule: Autonomous district/regional councils in Assam, Meghalaya, Tripura and Mizoram exercise specified legislative, judicial and fiscal powers.

Analysis: Article 371 protects through the State Constitution relationship; the Fifth protects through guardianship; the Sixth decentralises self-government.

Qualification: [LIMIT] Overlap of geography or purpose does not merge legal powers.

Verdict: The choice between the mechanisms reflects the depth of autonomy sought: tailored State protection, supervised Scheduled-Area administration or autonomous tribal government.

M6. Assess the constitutional and political case for Sixth Schedule protection in Ladakh. (15 marks, 250 words)

Model answer

Claim: [CURRENT] Ladakh's Sixth Schedule demand seeks enforceable protection for tribal identity, land, jobs, ecology and local decision-making after its conversion into a UT without legislature.

Case for: A predominantly tribal and ecologically fragile region faces rapid development and limited representative law-making. Autonomous councils with specified legislative and fiscal powers could deepen local consent and protect resources.

Concerns: Ladakh's strategic border location, existing Hill Councils, inter-regional Leh-Kargil differences and the Sixth Schedule's original north-eastern design require careful institutional adaptation.

Alternatives: Statehood, a UT legislature, stronger Hill Councils or Article 371-type safeguards may address some demands, but differ in legal strength and scope.

Current status: [CURRENT] No Sixth Schedule or Statehood change has been enacted by 18 August 2026.

Verdict: The demand deserves negotiated constitutional protection, but the model should preserve national security while granting real land, employment and democratic safeguards rather than symbolic consultation.

M7. "The unresolved Statehood question is now more important than the settled Article 370 question." Comment. (20 marks, 250 words)

Model answer

Claim: [ANALYSIS] The legality of Article 370's inoperability is settled by the 2023 judgment, while J&K's federal status remains institutionally unfinished.

Settled dimension: The Court held Article 370 temporary, rejected separate internal sovereignty and upheld the presidential declaration. Elections were directed and held in 2024.

Unresolved dimension: J&K remains a UT. The Court recorded the Union's assurance of Statehood at the earliest but fixed no deadline and avoided deciding the validity of the State-to-UT conversion.

Why it matters: Statehood affects federal representation, legislative competence, executive authority, policing and the symbolic equality of J&K with other States. An elected UT Assembly restores democracy but not full federal autonomy.

Counterpoint: Security, administrative transition and parliamentary control may justify sequencing.

Qualification: [LIMIT] Pending restoration does not reopen Article 370 automatically.

Verdict: The constitutional task has shifted from adjudicating special status to completing representative federal normalisation through a clear, credible Statehood process.

M8. Evaluate whether regional-development clauses under Articles 371 and 371J deliver substantive federal equality. (20 marks, 250 words)

Model answer

Claim: [FACT] Articles 371 and 371J address inequality within States rather than autonomy between Union and State.

Design: Article 371 supports development boards, reporting, equitable development expenditure and opportunity for identified regions of Maharashtra and Gujarat. Article 371J creates a development board and local education/employment measures for Kalyana Karnataka.

Strength: Constitutional recognition prevents backward regions from disappearing inside State-wide averages and can direct funds, seats and posts toward persistent disadvantage.

Weakness: Boards may become advisory, data may be opaque, local reservation can face implementation disputes and constitutional labels cannot substitute for budgets or administrative capacity.

Reform: publish region-wise outcome indicators, link allocations to deprivation, conduct independent audits, preserve merit through capacity-building and involve local elected bodies.

Qualification: [LIMIT] Region-based preference must remain proportionate and periodically evaluated.

Verdict: These clauses can realise substantive federal equality only when constitutional recognition is converted into measurable development rather than permanent political symbolism.